

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
August 31, 2026, 8:30 AM, Department 2
101 Maple Street, Auburn**

Published August 25, 2026, 2:30 PM

NOTICE: CHANGE OF CALENDAR DEPARTMENT AND DATES

Beginning July 6, 2026, the Probate Calendar will be heard Mondays, 8:30 a.m., in Department 2, located at the Historic Courthouse, 101 Maple Street, Auburn.

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **August 31, 2026, 8:30 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are **not** a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0010430 Josiah Pickett Spec Needs Trust; In re the

1st SNT account

Appearance is required for continued hearing on 1st SNT account.

2d SNT account

Appearance is required for continued hearing on 2d SNT account.

3d SNT account

Appearance is required for hearing on 3d SNT account.

Missing notice of hearing. Missing service of notice of hearing.

Clarification is needed: the 3d account shows the trust purchased a vehicle. Such a purchase is ordinarily scheduled as a change in the form of assets. If title was taken in the name of beneficiary, the purchase appears to be an improper distribution; if title was taken in the name of a third party, the purchase appears to be an improper gift of trust assets. If title remains in the trust, the trust continues to hold a valuable corpus, bond remains required, and future accounts will be required.

In light of the low value of estate cash reserves, it is recommended total reasonable attorney fees and costs for all accounts be fixed at \$15,000.00.

2. S-PR-0012062 In Re the Estate of Trocha, Robert John

Missing waiver of personal representative fees by Madison Trocha, former joint personal representative of the estate.

Clarification is needed: the estate is a non-cash estate. Petitioner should show how requested attorney fees are to be paid. The court will not ordinarily approve fees where there are no assets to pay fees.

3. S-PR-0012117 In Re the Estate of Lewis, Edward

Appearance is required for continued hearing on petition for final distribution.

Missing corrected I&A referred to in ¶ 8 of the petition.

Clarification is needed: the estate is a non-cash estate. Petitioner should show how requested attorney fees are to be paid. The court will not ordinarily approve fees where there are no assets to pay fees.

The request to approve distribution of the estate must be denied. Petitioners admit distributing the entirety of the estate contrary to decedent's will (which limits distribution to decedent's trust) and to the underlying trust (under which Steven Lewis's trust share is preserved for his children (see Art. 12 §§ 1–2). See also Declaration of Harake, filed June 20, 2023, at 1:26–28. The court should not authorize testate distribution contrary to the controlling testamentary instruments.

It is recommended the petition be deemed one to terminate administration under Prob.C. § 12251 as there are no assets in the estate from which to award fees or which can